

Court No. - 3

Case :- WRIT - C No. - 10791 of 2022

Petitioner :- Radhey Shyam @ Radhey Shyam Patel

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Kalp Nath

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following relief:

"I. Issue a writ, order or direction in the nature of certiorari for quashing the impugned recovery order dated 24.2.2021 issued by Additional Collector (Finance and Revenue) Bhadohi respondent No.2 for the amount of Rs. 78840+40 as Rs. 78880=00 payable of electricity and expenditure of notice (Annexure no. 4 to this writ petition).

II. Issue a writ, order or direction in the nature of mandamus directing to the respondents to reassessment of recovery amount."

Sri Sushil Kumar Pandey, learned counsel for the respondent / Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No. 3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 5.7.2022

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